

Abhinay Sain vs The State Of Jharkhand on 6 April, 2022

Author: Sanjay Kumar Dwivedi

Bench: Sanjay Kumar Dwivedi

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IN THE HIGH COURT OF JHARKHAND AT RANCHI

Cr.M.P. No. 3296 of 2017

1. Abhinay Sain, son of Ramesh Chand Sain
2. Ramesh Chand Sain, son of Late Shri Ramji Lal
3. Sharda Sain, wife of Shri Ramesh Chand Sain
All are residents of CB-292, Naraina, Ring Road, Gali No.17, P.O. & Naraina, New Delhi-110028
4. Manisha Sain, wife of Shri Pradeep Sain, resident of Plot No.397, Scheem No.03, Family Line, Alwar, P.O. & P.S. Alwar, Rajasthan-301001 ... Petitioners

-Versus-

1. The State of Jharkhand
2. Mukhta Kumari, wife of Abhinay Sain, resident of Flat No.101, Sri Draupati Apartment, Neel Ratan Street, P.O. G.P.O., P.S. Kotwali, District- Ranchi-834001 ... Opposite Parties

CORAM: HON'BLE MR. JUSTICE SANJAY KUMAR DWIVEDI

For the Petitioners	: Mr. Binay Kumar Sahay, Advocate
For the Opposite Party-State	: Mr. Veervijay Pradhan, A.P.P.
For Opposite Party No.2	: Mr. Chetan Krishna Nagesh, Advocate

08/06.04.2022. Heard Mr. Binay Kumar Sahay, learned counsel for the petitioners, Mr. Veervijay Pradhan, learned A.P.P. For the State and Mr. Chetan Krishna Nagesh, learned AC to Mr. Arvind Kumar Lall, appearing for opposite party no.2.

2. This petition has been taken through Video Conferencing in view of the guidelines of the High Court taking into account the situation arising due to COVID-19 pandemic. None of the parties have complained about any technical snag of audio-video and with their consent this matter has been heard.

3. This petition has been filed for quashing of the FIR and the entire criminal proceeding bearing Kotwali P.S. Case No.655 of 2014, dated 18.07.2014, corresponding to G.R. Case No.4061 of 2014, registered under Section 498-A of the Indian Penal Code and Section 3/4 of the Dowry Prohibition Act, pending in the court of the learned Chief Judicial Magistrate, Ranchi.

4. Opposite party no.2 has filed the FIR alleging therein that the marriage of opposite party no.2 solemnized with petitioner no.1 on 07.02.2013 at Laxmangarh (Sikar), Rajasthan in accordance with Hindu rites and customs in presence of their family members. After marriage, opposite party no.2 went to her matrimonial home, situated at Delhi. It was further alleged in the FIR that at the time of marriage cash and jewellery were given to the petitioners to the tune of Rs.15 Lakhs, but the in-laws and her husband demanding Rs.30 Lakhs. It was also alleged that Rs.10 Lakhs and Bolero vehicle were demanded and due to non-fulfillment of the demand, she was subjected to torture. The father of opposite party no.2 went to her matrimonial home and gave Rs.75,000/-. Thereafter, the petitioners assured him that opposite party no.2 will be kept properly, but soon thereafter the demand of additional dowry was made and due to non-fulfillment of the demand, she was assaulted by fists and slaps. The opposite party no.2 informed her uncle, who was residing at Jhasi, Uttar Pradesh, who went to Delhi and brought the opposite party no.2 to Jhasi and thereafter she came to Ranchi. It was further alleged that on 25.06.2013, the petitioner no.1 came to Ranchi and asked the father of opposite party no.2 to permit her to go to Delhi and simultaneously he also demanded Rs.10 Lakhs and Bolero vehicle. The father of opposite party no.2 refused to give the same. Thereafter, the petitioner no.1 left the house of the opposite party no.2 and hurled abuses. The opposite party no.2 filed a complaint case bearing no.1996 of 2013 before the learned Chief Judicial Magistrate, Ranchi, who sent the same to Kotwali Police Station to register an FIR under Section 156(3) Cr.P.C. and accordingly the instant FIR was registered.

5. At the outset, Mr. Binay Kumar Sahay, learned counsel for the petitioners submits that now the case has been settled between the parties. He further submits that in Original Suit (Matrimonial Title Suit) No.204 of 2014, the learned Additional Principal Judge, Family Court, Ranchi has allowed the prayer made by both the parties under Section 13-B of Hindu Marriage Act, whereby vide judgment and decree mutual divorce has taken effect.

6. Mr. Chetan Krishna Nagesh, learned AC to Mr. Arvind Kumar Lall, appearing for opposite party no.2 on instruction from his senior accepts this position and submits that the case has been compromised and mutual divorce has taken effect. He further submits that he has got no objection if this petition is allowed.

7. In view of the above facts and considering that this matter is arising out of matrimonial dispute and both the parties have obtained divorce under Section 13-B of the Hindu Marriage Act and also considering the judgments rendered by the Hon'ble Supreme Court in the case of Narinder Singh & Ors. Versus State of Punjab & Anr., reported in (2014) 6 SCC 466 and Gian Singh Vs. State of Punjab & Anr. reported in (2012) 10 SCC 303, there is no societal interest involved in this petition and it is a fit case to exercise power under Section 482 Cr.P.C.

8. Accordingly, the FIR and the entire criminal proceeding bearing Kotwali P.S. Case No.655 of 2014, corresponding to G.R. Case No.4061 of 2014, pending in the court of the learned Chief Judicial Magistrate, Ranchi is, hereby, quashed.

9. This petition is, therefore, allowed and disposed of.

10. Interim order dated 02.04.2018 stands vacated.

(Sanjay Kumar Dwivedi, J.) Ajay/